

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 1902299

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: JAKE COSTELLO

and

RESPONDENT: MARISSA COSTELLO

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – VISITATION

RULING

This matter is before the Court on Petitioner/Father's June 1, 2026, Request for Order (RFO) for a modification of visitation regarding the parties' daughter Sailor (DOB: 07/14/2015). Respondent/Mother filed a response on June 25, 2026.

Judgment was entered in this matter December 14, 2020, with the parties entering into a marital settlement agreement.

Procedural History

The parties previously had custody and visitation orders issued on March 28, 2023, that included (1) maintaining joint legal and physical custody, (2) a 2/2/3 schedule, (3) a holiday schedule, and (4) orders regarding vacation time and any camping trips.

On April 18, 2026, the parties entered into a stipulated child custody and visitation agreement. The parties' followed a rotating 2-2-3 schedule where Sailor is with parent A from Monday morning to Wednesday morning, Parent B from Wednesday morning to Friday morning, Parent A Friday morning to Monday morning, Parent B from Monday morning to Wednesday morning, and so on, with pick up and drop off to happen at the child's school or curbside at the receiving parent's home on non-school days. The parties also stipulated to a holiday and vacation agreements and other agreements surrounding communication and visits with Mother and Father's family.

Father requests to maintain the 2/2/3 schedule and also requests that (1) exchanges happen at his home with Mother providing the transportation, and (2) Mother drop off Sailor at his home when his custodial time begins and pick her up at his home on Mondays when Mother's custodial time resumes. Father states that his new job and schedule requires him to drop off Sailor in the morning at 7 a.m. and pick her up at 4:45 p.m. on his custodial days. Father also requests that he

not be blocked from taking Sailor on hiking or camping trips in the wilderness or river rafting. And Father seeks greater flexibility on providing notice to Mother when planning trips within Marin County. Finally, Father seeks the Court's assistance in underscoring that both parents are to engage in peaceful communication in front of Sailor.

In her response, considering Father's work schedule, Mother requests Sailor be dropped off at Mother's home at 7:00 AM when his custodial time ends and pick up Sailor from Mother's home at 4:45 when his custodial time begins. She also requests that any proposed amendments to item numbers 9 and 1 of 0 the April 18, 2026, stipulation be denied. Items 9 and 10 of the stipulation state that either parent traveling with Sailor overnight shall provide the other parent, 5 days prior to the departure, with the dates, itineraries and accommodation information including flight information, addresses, hotels/AirBnbs/campground names and reserved site numbers, as well as any contact information of host (if staying with family/friends).

Status of Marin Family Court Services

On July 7, 2026, Family Court Services (FCS) sent out a notice that the FCS intake forms had not been completed. On July 8, 2026, Father submitted an FCS intake sheet, but it does not appear that an FCS appointment was made and there is no current FCS report.

The matter is continued to August 27, 2026, at 9:00 am. Parties are referred to Family Court Services for mediation, counseling and recommendations.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 2102714

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: LORETO ALTAMIRANO

and

RESPONDENT: MAXIMILLIANO SALVO

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – VISITATION

RULING

Procedural History

This matter is before the Court on Petitioner/Mother's June 1, 2026, Request for Order (RFO) for a modification to visitation and orders (1) defining Winter Break, (2) establishing a summer schedule, and (3) clarification of travel to Chile, relating to the parties' son, Franco (DOB: 11/23/2017). Per a stipulation and agreement that the parties entered into that was filed on April 2, 2025, the parties have joint legal and joint physical custody of Franco on a 2/2/5 schedule.

Mother requests that the Court define the duration of the Winter Break as the full two weeks, divided in half, with the parents alternating who has the first and second weeks. Mother seeks a week on/off summer parenting schedule, with up to 18 consecutive days for travel as noticed prior to March 15 each year, and seeks affirmation of their May 27, 2022, Judgment and their September 11, 2024, Mediated Custody Agreement, both of which state travel to Chile may occur during the Summer Break.

In his June 25, 2026, Responsive Declaration, Father requests out-of-state or international travel be allowed during either parent's custodial time, with 30 days written notice for international travel, including dates, destination, flight information, and contact information during the trip.

Father further seeks an order that he hold Franco's passport, with release to Mother for confirmed international travel plans 20 days prior to her departure along with a Notarized Travel Authorization. Father proposes the parties alternate the entire Winter break, with international travel permitted during that period. Father agrees to a week on/off summer schedule but requests up to 30 days vacation for each parent, including international travel, with proposed vacation date due by April 15.

Finally, Father identifies a series of specific requests. First, Father requests permission to travel to Chile over the 2026 Thanksgiving break. Second, Father seeks \$412 in reimbursement from